
Forncett and Carleton School Visit Report**Audit Date: 06/02/20****Report: Year 2 visit 3****DPE: Stuart Lee****School member:** Judith Jones, Rachael Burrows and Vicky Brosnihan

1. Visit details

In addition to the audit walk, key GDPR documentation was discussed with previous report actions. Since the last visit the schools have federated. Judith is the executive head with each school now having a senior teacher. Both schools work closely together, for example: GDPR policies and procedures are now produced for the federation; both Vicky and Rachael attended the recent DPE workshop and Judith, Vicky and Rachael were all available and participate in visits. Additional GDPR documents that have now been completed include:

- Work out of school
- FOI policy
- Clear desk
- Updated consent
- Information Classification
- Records management

A school publication scheme (section 3) was discussed and SL confirmed that DPE will be providing some additional guidance on the DPE website. Governor GDPR compliance checklist had already gone to governors.

Training is in progress and the Federation (Carleton) are starting to use Compliance Manager i.e. breach procedure has been uploaded. GDPR is part of induction for new staff and the cyber essentials questionnaire has been handed to JC CommTech to complete, this will also complement the online safety audit which is completed by schools.

The federation are at an advanced stage with their GDPR project. Future visits focus will be on completing the Record of Processing tool.

2. Audit walk findings

A mini walk was completed at both schools. Actions from the previous visits were discussed and had either been actioned or reviewed (refer to previous report). It was confirmed that consent had been updated and matches what is on display i.e. photo and forename. Sensitive data is secured in locked cabinets with all staff spoken to understanding the procedure.

Front offices (Federation)

The front office at Carleton was clear and tidy. The front office at Forncett had a data cleanse in progress with an additional secure cabinet having been purchased and awaiting delivery. Both Vicky and Rachael are proactive in maintaining GDPR compliance, not only in their work areas but around school in general.

Headteacher office (Forncett)

Item: SEND folders on display

- **Note:** Ascertained that these would be better placed in secure storage or to utilise secure online systems.

Classrooms

Forename only has been adopted for list and displays with minimal data on display. 1 x iPad was accessed without secure codes but this did not contain any PII data – in line with the procedure for iPads without coded entry. Where folder systems are used forename only is predominantly used for lists within with the federation utilising online systems for sharing and storing sensitive PII data.

Central Record (Forncett query)

Racheal had a query with what to do with the archived (old records) central record where it holds PII data.

Advisory: Suggested as this is safeguarding to archive current workbook and keep (file has restricted access and password protected). SL to follow up with JE and get back to the school if the advice changes.

Trips

Vicky raised a query regarding sending contact lists out with staff for emergencies.

- **Advisory:** Suggested unless electronic systems can be utilised Vicky can add a front cover, minimise data (remove ethnicity, photo etc), add contact details for if information was lost and also to document procedure, including checklist for staff.

3. Compliance actions that should now be completed

Initial documents:

- Privacy Notice
- GDPR Policy
- Data Breach Procedure
- SAR procedure
- Photo and Video consent

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. If using GDPRiS this should also be kept updated. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

3.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf
- DfE toolkit
https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5,1)

3.2. Staff training

GDPR training should be completed and documented. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

3.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

3.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

4. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

5. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

6. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

6.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

7. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>